

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 3403

By: Patzkowsky of the House

and

Stewart of the Senate

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10 COMMITTEE SUBSTITUTE

11 An Act relating to environment and natural resources;
12 creating the Oklahoma Biosolids Land Application
13 Research Pilot Program Act; requiring the Pilot
14 Program be administered by the Department of
15 Environmental Quality in cooperation with Oklahoma
16 State University; providing for expiration of Pilot
17 Program; listing requirements for the Pilot Program;
18 requiring certain annual report be submitted; listing
19 requirements for annual report; authorizing
20 partnerships with private landowners; limiting
21 liability; making certain exemption; requiring
22 certain documentation be kept; authorizing funding;
23 requiring deposit of funds in certain revolving fund;
24 creating the Oklahoma Biosolids Land Application
 Research Pilot Program Act Revolving Fund; describing
 fund; providing for content of fund; providing for
 deposits and expenditures; providing for
 codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

1 SECTION 1. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 2-10-1120 of Title 27A, unless
3 there is created a duplication in numbering, reads as follows:

4 This act shall be known and may be cited as the "Oklahoma
5 Biosolids Land Application Research Pilot Program Act".

6 SECTION 2. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 2-10-1121 of Title 27A, unless
8 there is created a duplication in numbering, reads as follows:

9 A. There is hereby created at Oklahoma State University (OSU)
10 the Oklahoma Biosolids Land Application Research "Pilot Program".
11 The Pilot Program shall be administered by the Department of
12 Environmental Quality (DEQ) in cooperation with the Division of
13 Agricultural Sciences and Natural Resources in coordination with the
14 OSU College of Engineering, Architecture and Technology, the OSU
15 Department of Environmental Science, and the Cooperative Extension
16 Service. The Pilot Program shall operate for an initial five-year
17 period.

18 B. The Pilot Program shall:

19 1. Identify and approve study plots on agricultural lands,
20 including, but not limited to, OSU-owned research farms and, as
21 appropriate, cooperating private farms;

22 2. Develop biosolids application protocols, including:

23 a. nutrient content evaluation,
24

- b. pathogen and contaminant screening (including perfluoroalkyl and polyfluoroalkyl substances (PFAS), heavy metals, and pharmaceuticals),
- c. application rates, and
- d. soil amendment practices;

3. Conduct agronomic research, including crop yield impacts, soil health changes, and nutrient cycling;

4. Conduct environmental impact studies, including:

- a. surface and groundwater monitoring,
- b. soil residual testing, and
- c. air quality, odor, and vector considerations;

5. Assess regulatory models, including best management practices, permitting options, and compliance structures suitable for Oklahoma;

6. Coordinate with the DEQ and may utilize biosolids supplied by Oklahoma municipal wastewater treatment facilities that meet DEQ and Environmental Protection Agency (EPA) standards; and

7. Provide outreach and education to Oklahoma farmers, ranchers, conservation districts, and municipalities through OSU Extension programs.

C. A report shall be submitted annually to the Governor, the President Pro Tempore of the Oklahoma State Senate, the Speaker of the Oklahoma House of Representatives, and the DEQ regarding

1 findings, data, and recommendations. Annual reports shall be
2 submitted no later than December 1st and include:

- 3 1. Agronomic outcomes;
- 4 2. Environmental monitoring results;
- 5 3. Risk assessments;
- 6 4. Recommendations for statewide standards or rules; and
- 7 5. Cost-benefit analysis for farmers and municipalities.

8 D. OSU may partner with private agricultural landowners who
9 volunteer to participate in research trials. OSU shall secure
10 written consent, ensure DEQ compliance, and provide guidelines for
11 application, monitoring, and sampling. No landowner shall be held
12 liable for environmental impacts resulting solely from adherence to
13 OSU protocols developed under the Pilot Program.

14 E. Biosolids applied under the Pilot Program shall be exempt
15 from state permitting otherwise required under environmental or land
16 application rules, only to the extent necessary to conduct
17 controlled research, and only when research protocols meet or exceed
18 DEQ and EPA requirements. OSU shall coordinate with DEQ to ensure
19 proper recordkeeping and transport documentation.

20 F. The Pilot Program may be funded by legislative
21 appropriations, federal research grants, municipal contributions,
22 private or industry research partnerships, or in-kind contributions
23 of biosolids or laboratory services. Funds for administering the
24 Pilot Program shall be deposited into the Oklahoma Biosolids Land

1 Application Research Pilot Program Act Revolving Fund created in
2 Section 3 of this act.

3 SECTION 3. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 2-10-1122 of Title 27A, unless
5 there is created a duplication in numbering, reads as follows:

6 There is hereby created in the State Treasury a revolving fund
7 for the Department of Environmental Quality to be designated the
8 "Oklahoma Biosolids Land Application Research Pilot Program Act
9 Revolving Fund". The fund shall be a continuing fund, not subject
10 to fiscal year limitations, and shall consist of all monies received
11 by the Department from appropriations, apportionments, donations,
12 and federal grants received for the purpose of conducting the
13 provisions of the Oklahoma Biosolids Land Application Research Pilot
14 Program Act created pursuant to Section 2 of this act. All monies
15 accruing to the credit of the fund are hereby appropriated and may
16 be budgeted and expended by the Department for the purpose provided
17 for in this section. Expenditures from the fund shall be made upon
18 warrants issued by the State Treasurer against claims filed as
19 prescribed by law with the Director of the Office of Management and
20 Enterprise Services for approval and payment.

21 SECTION 4. This act shall become effective November 1, 2026.
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23 COMMITTEE REPORT BY: COMMITTEE ON APPROPRIATIONS AND BUDGET, dated
24 03/05/2026 - DO PASS, As Amended and Coauthored.